

April 8, 2026
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Submitted via regulations.gov

Re: Public Comment on Proposed Voluntary National Election Audit Standards (Draft Version, February 18, 2026)

I respectfully submit this comment in response to the Election Assistance Commission's Request for Comment on the proposed Voluntary National Election Audit Standards. I write as a citizen with a sustained interest in election integrity and the evidentiary foundations of post-election audit law. I have personally attended post-election audits and have written about the experience. There is much room for improvement.

The draft standards represent a meaningful step forward. They establish important principles across fifteen topic areas and provide a useful framework for election officials. My comment does not dispute those principles; it identifies a critical gap in the draft's coverage that, if left unaddressed, will allow the standards to be satisfied on paper while failing in practice at the moment that matters most: when an audit reveals a discrepancy.

I. A Critical Gap: The Draft Is Silent on Discrepancy Resolution

The draft standards address how audits should be authorized, staffed, funded, conducted, and communicated. They do not address what must happen when a post-election tabulation audit reveals a quantitative discrepancy between the machine tally and the manual count. This omission is not minor. Discrepancy resolution is the hinge on which an audit's entire purpose turns.

The draft's own Efficacy standard states that a post-election tabulation audit's goal is to "confirm correct outcomes" and should be "completed in time for the results to be useful" — i.e., before certification. That goal is defeated if the administering authority can avoid escalation simply by offering an explanation for the discrepancy. An audit that concludes without resolving a discrepancy does not "confirm correct outcomes"; it ratifies the reported outcome while leaving the discrepancy unexplained in any evidentiary sense.

This is not a hypothetical concern. In *Johnson v. Martins*, 30 Misc.3d 844 (Sup. Ct., Nassau County 2010), a New York court held that a post-election audit discrepancy was "reconcilable" — and escalation therefore unnecessary — because the administering authority offered "a clear and logical explanation/reason why the discrepancy occurred." No documentary corroboration was required. No independent review occurred. The auditee's assertion alone was sufficient.

An explanation is a hypothesis. It describes what might have caused a discrepancy. It is not evidence that the hypothesized cause actually occurred.

Any administering authority can offer a plausible explanation for any discrepancy. If explanation alone suffices, the audit's escalation mechanism is effectively nullified. The draft standards, as written, provide no protection against this outcome.

II. The Draft's Own Standards Point Toward a Solution

Three of the draft's existing standards, if extended to cover discrepancy resolution, would close this gap.

1. **Impartiality.** The draft's Impartiality standard requires that audits "focus solely on factual evidence to reach fair and objective conclusions" and warns against "external pressures aimed at influencing audit outcomes." These are the right principles. But the draft does not apply them to the specific question of what counts as resolution of a discrepancy. The Commission should make explicit that a discrepancy is resolved only upon *factual evidence* — not upon assertion or explanation — consistent with the Impartiality standard's own requirement.
2. **Independence.** The draft's Independence standard states that "neither the audit process nor results should depend solely on the chief election official." This principle applies with particular force to discrepancy resolution. Under the current New York framework — and many analogous state frameworks — the election board whose machines produced the discrepancy is the same body that decides whether that discrepancy is "reconcilable." The draft's Independence standard expressly identifies this as a conflict to be mitigated. The Commission should extend that standard by specifying that the determination of whether a discrepancy is resolved should not be made solely by the administering authority responsible for the systems that produced it.
3. **Appropriateness.** The draft's Appropriateness standard requires that "evidence examined by the audit should be clearly defined and correspond to the goals of the audit." The Commission should clarify that this standard governs not just evidence examined during the audit, but also evidence required to resolve a discrepancy the audit reveals. Evidence sufficient to "confirm correct outcomes" (the Efficacy standard's stated goal) cannot consist of an unverified assertion.

III. Support from GAO Auditing Doctrine

The Comptroller General's Government Auditing Standards ("Yellow Book," 2024 revision) are not formally applicable to election audits, but their foundational principles are directly relevant and consistent with what the draft's own standards already require. Two are especially pertinent:

Sufficient and Appropriate Evidence. The Yellow Book requires that audit findings be supported by evidence that is sufficient in quantity and appropriate in quality — meaning relevant and reliable. A voluntary explanation offered by the audited body meets neither test.

Criteria / Condition / Cause / Effect. The Yellow Book requires that when an audit finding is identified, the cause must be demonstrated, not merely theorized. Collapsing “cause” into “possible explanation” — as *Johnson v. Martins* did — is inconsistent with this framework.

The draft already invokes “professional standards” in its Competence section, noting that “many of the broad principles of auditing are universally applicable.” The Yellow Book’s evidentiary standards are among those universal principles.

IV. An Unfulfilled Congressional Mandate

Section 245 of the Help America Vote Act of 2002 required the Commission to study and report to Congress — by June 2004 — on challenges presented by electronic technologies in the electoral process, specifically including “potential external influences during the elections process.” That report was apparently never submitted.

A post-election tabulation audit conducted to an evidentiary standard is the primary tool available to detect such external influences. The draft’s Security standard recognizes this, noting that post-election audits verify that voting systems “operated in their certified, authorized configuration throughout the election period.” But that verification is meaningful only if a discrepancy — the signal that something may have gone wrong — triggers genuine investigation rather than administrative closure through explanation.

This rulemaking offers the Commission an opportunity to fulfill, in the form of voluntary national standards, the intent that Congress expressed in HAVA §245 but never saw implemented.

V. Specific Recommendations

I urge the Commission to add a new standard — or to amend the Impartiality, Independence, and Appropriateness standards — to address discrepancy resolution explicitly. The standard should reflect three principles:

4. **Evidence, not explanation.** A discrepancy between the manual tally and the machine tabulation should be deemed resolved only upon demonstration, supported by documentary evidence in the existing canvass record, that a specific and identifiable cause accounts for the full magnitude of the discrepancy. A hypothesis or inference not corroborated by contemporaneous records should not constitute resolution. This is consistent with the Impartiality standard’s requirement to “focus solely on factual evidence.”
5. **Burden on the administering authority.** The burden of demonstrating that a discrepancy is resolved should rest with the administering authority. It should not fall on any candidate, party, or member of the public to disprove a proposed explanation.

6. **Independent review.** Consistent with the draft's Independence standard, the determination of whether a discrepancy has been resolved should not be made solely by the administering authority whose systems produced it. Jurisdictions should be encouraged to designate a bipartisan or nonpartisan review body, or provide for judicial review, as the appropriate forum for that determination.

These principles are consistent with Risk-Limiting Audit methodology, which the draft already identifies as a recognized audit type. RLAs require a statistical confidence threshold to be met before an audit concludes — no explanation can substitute for the evidence of a sufficient sample. The proposed standards need not mandate any specific methodology; they should, however, establish that no methodology satisfies the standard if it permits the auditee to close the audit through assertion rather than evidence.

VI. Conclusion

The draft Voluntary National Election Audit Standards are a valuable contribution to the professionalization of election auditing. They articulate the right values across fifteen topic areas. The gap this comment identifies is specific and addressable: the draft does not say what must happen when an audit finds a discrepancy. Without that, the standards can be satisfied on paper while the audit fails in practice at the most consequential moment.

The Commission's own Impartiality standard requires "factual evidence." Its Independence standard requires that results not depend solely on the chief election official. Its Efficacy standard requires that tabulation audits "confirm correct outcomes." These commitments are undermined if a discrepancy can be closed by explanation alone. I respectfully urge the Commission to extend those existing commitments to cover the moment when they matter most.

Respectfully submitted,

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